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Privacy Policy

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This Privacy Policy explains how Lixtara collects, uses, shares, and protects information about you when you use our website, platform, and related services (the "Service"). Lixtara is a Miami, Florida-based real-estate technology platform that connects sellers who list their own homes with buyers who make offers, and supports the e-signing of real-estate agreements.

Lixtara is operated by Lixtara LLC, a licensed Florida real estate brokerage (FL #CQ1075352) located at 181 Vera Ct, Miami, FL 33143. By accessing or using the Service, you acknowledge that you have read and understood this Privacy Policy. If you do not agree with our practices, please do not use the Service.

We are a United States-based company, and we process information in the United States. Please read this Policy together with our Terms of Service and our Cookie Policy.

1. Introduction and Scope

This Privacy Policy applies to personal information we collect through the Lixtara website, web application, and any associated features, including our seller listing tools, buyer offer tools, the "Loui" AI assistant, virtual staging, and the "Living Listing" feature.

This Policy describes the categories of information we collect, how we use and disclose that information, the third-party service providers we rely on, and the choices and rights available to you. It does not apply to the practices of third parties that we do not own or control, including service providers and other companies whose own privacy policies govern their handling of your information.

Terms such as "we," "us," and "our" refer to Lixtara LLC ("Lixtara"). "You" refers to any individual who uses the Service, whether as a seller, buyer, visitor, or other user.

2. Information We Collect

We collect information that you provide to us directly, information we collect automatically when you use the Service, and information we receive from third parties. The categories below describe the information we may collect.

2.1 Information You Provide to Us

We collect the information you provide when you create an account, list a property, make or respond to an offer, complete a transaction, sign agreements, or otherwise communicate with us.

- Account information: your name, email address, and password, and any profile details you choose to add.
- Property and listing details: information about the homes you list, including address, descriptions, features, pricing, and photographs and other media you upload.

- Offer and transaction information: details related to offers you make or receive, counteroffers, and the progress and terms of a real-estate transaction.
- Payment information: payment details you provide when you purchase a plan or service. Payments are processed by our payment provider, Stripe. Lixtara does not store full payment card numbers.
- Identity and signature information: information used to verify your identity and capture your electronic signature on agreements, handled through our e-signature provider, DocuSign.
- Communications: the content of messages you send to us, including support requests and conversations with the Loui AI assistant.

2.2 Information We Collect Automatically

When you use the Service, we and our service providers automatically collect certain information about your device and how you interact with the Service.

- Usage data: pages and features you view, actions you take, search queries, and timestamps of your activity.
- Device data: your IP address, browser type, operating system, device identifiers, and similar technical information.
- Cookies and similar technologies: information collected through cookies and comparable technologies, as described in Section 6 and in our separate Cookie Policy.
- Address and location data: location information associated with the listings you create and view, used to display properties and render maps.

2.3 Information We Receive from Third Parties

We may receive information about a property, a transaction, or a property owner from third parties to support the Service.

- Public property records: property records obtained from the Miami-Dade County Property Appraiser to help describe and verify listings.
- Property value estimates: estimated property values and related data obtained from Rentcast.
- Public records and data providers: names and mailing addresses of Florida property owners from the Florida property tax roll and Sunbiz, and email addresses from commercial data providers, used to tell owners about our services. You can unsubscribe at any time.

3. How We Use Your Information

We use the information we collect for the following purposes:

- To provide, operate, and maintain the Service and to create and manage your account.
- To process and display property listings, facilitate offers and counteroffers, and support the progress of real-estate transactions.
- To process payments for plans and services through our payment provider.
- To enable the electronic signing of real-estate agreements and to maintain related signature and identity records.
- To facilitate broker support and the licensed-broker functions of the platform.

- To power AI features, including the Loui AI assistant, virtual staging, and the Living Listing feature.
- To protect the security and integrity of the Service, detect and prevent fraud and abuse, and enforce our terms.
- To communicate with you, including sending transactional messages, responding to inquiries, and providing customer support.
- To comply with our legal obligations and respond to lawful requests.
- To analyze, improve, and develop the Service and its features.

4. How We Share Your Information

We share information in the circumstances described below. We do not sell your personal information for money.

4.1 Service Providers and Sub-Processors

We share information with trusted service providers who process information on our behalf to deliver the Service. These providers are authorized to use your information only as necessary to provide services to us. They include:

- Supabase: authentication, database and file storage (accounts, listings, photos, documents, offers, consent records). Privacy policy: https://supabase.com/privacy
- Vercel: hosting of the Service, server logs (including IP address and browser), and the isolated environment that renders listing videos. Privacy policy: https://vercel.com/legal/privacy-policy
- Anthropic: the AI model behind the Loui assistant, the listing-description rewriter and the photo analysis features. Privacy policy: https://www.anthropic.com/legal/privacy
- Google LLC (Google Maps Platform): address autocomplete and address validation (geocoding). Privacy policy: https://policies.google.com/privacy
- Google LLC (Google Analytics): usage analytics through Google Tag Manager and, after a payment, a server-side purchase event with pseudonymous identifiers, only if you accept analytics cookies. Privacy policy: https://policies.google.com/privacy
- Google LLC (Gemini API): the Living Listing feature, which turns one listing photo into a short video. Privacy policy: https://policies.google.com/privacy
- Microsoft (Clarity): usage analytics and session recording, only if you accept analytics cookies (see Section 6.1). Privacy policy: https://privacy.microsoft.com/privacystatement
- Stripe: payment processing; your card details are entered on Stripe's pages and Lixtara does not store full card numbers. Privacy policy: https://stripe.com/privacy
- DocuSign: electronic signature of the listing agreement and related documents. Privacy policy: https://www.docusign.com/privacy
- Resend: sending email (verification codes, receipts, notifications). Privacy policy: https://resend.com/legal/privacy-policy
- Upstash: rate limiting and abuse protection, using identifiers such as IP address, account ID or email address. Privacy policy: https://upstash.com/trust/privacy.pdf

- Cloudflare (Turnstile): bot protection on sign-in, sign-up, password-reset and listing forms. Privacy policy: https://www.cloudflare.com/privacypolicy/
- Sentry: technical error monitoring, configured not to send cookies, form contents or the text you type. Privacy policy: https://sentry.io/privacy/
- Rentcast: estimated property values and comparable sales, using the property address. Privacy policy: https://www.rentcast.io/privacy
- Luma AI: AI virtual staging of the listing photos you choose. Privacy policy: https://lumalabs.ai/legal/privacy
- Mapbox: map images on property pages (the property location and your browser's IP address). Privacy policy: https://www.mapbox.com/legal/privacy
- Instantly: sending prospecting email to property owners and recording opens, replies, bounces and unsubscribes. Privacy policy: https://instantly.ai/privacy
- Bridge Interactive and MIAMI Association of REALTORS® (MLS): the MLS listing feed shown on lixtara.com; MLS photos load from the MLS photo servers, which receive your browser's IP address.
- Miami-Dade County Property Appraiser: public property records used to pre-fill listing details, queried with the property address.
- PostHog: product analytics without session recording, only if it is enabled on the site and you accept analytics cookies. Privacy policy: https://posthog.com/privacy

4.2 Parties to Your Real-Estate Transaction

Because Lixtara facilitates real-estate transactions, we share relevant information with the parties to your transaction. Depending on your role, this may include the broker, buyers and their agents, sellers, and title or escrow providers, as needed to negotiate, document, and complete the transaction.

4.3 Legal and Safety

We may disclose information when we believe it is necessary to comply with applicable law, regulation, legal process, or a governmental request; to enforce our agreements; or to protect the rights, property, safety, or security of Lixtara, our users, or the public.

4.4 Business Transfers

If Lixtara is involved in a merger, acquisition, financing, reorganization, sale of assets, or similar transaction, your information may be transferred as part of that transaction, subject to this Privacy Policy.

4.5 With Your Direction

We may share your information with other parties when you direct us to do so or otherwise consent to the sharing.

4.6 No Sale of Personal Information; Sharing and Targeted Advertising

Lixtara does not sell your personal information for money. We do not currently share your personal information for cross-context behavioral or targeted advertising, and we do not engage in targeted

advertising of this kind. If our practices change, we will update this Policy and provide any rights and choices required by law.

5. AI Processing of Your Content

When you use our AI features, the text and images you submit are processed by our AI providers to generate responses and content. Specifically:

When you chat with the Loui AI assistant, your messages are sent to Anthropic to generate responses. If you are a seller and ask Loui about offers on your listing, the details of those offers, which may include the buyer's name and notes, are also sent to Anthropic to answer you. When you use virtual staging or the Living Listing feature, the images and related inputs you submit are sent to Luma to generate staged images or video content.

AI-generated outputs, including staged images and Living Listing media, are illustrative and intended to help visualize possibilities. They may not accurately reflect the actual condition, dimensions, or features of a property and should not be relied upon as a factual representation. Do not submit information through AI features that you do not wish to be processed for these purposes.

6. Cookies and Similar Technologies

We and our service providers use cookies and similar technologies to operate the Service, remember your preferences, keep you signed in, understand how the Service is used, and improve it.

For a detailed description of the cookies and similar technologies we use and the choices available to you, please see our separate Cookie Policy.

6.1 Usage Analytics and Session Recording

We use Microsoft Clarity, a service of Microsoft Corporation, to understand how the Service is used through heatmaps and session recordings. This helps us find where the site is hard to use and improve it.

Clarity runs only if you accept analytics cookies in the cookie banner. You can withdraw your consent at any time through "Cookie settings" in the site footer; after that, Clarity is no longer loaded.

- The text and data you type are hidden in the recordings. Photos, documents and signatures are hidden as well.
- Your account area (/account) is not recorded. Payment is not recorded either: it takes place on Stripe's pages, outside our site.
- Microsoft processes this data under its own privacy statement: https://privacy.microsoft.com/privacystatement

7. Data Retention

We retain personal information for as long as necessary to provide the Service, maintain your account, complete and document real-estate transactions, comply with our legal and recordkeeping obligations, resolve disputes, and enforce our agreements.

When information is no longer needed for these purposes, we take reasonable steps to delete it or to anonymize or de-identify it. Retention periods vary depending on the type of information and the purpose for which it was collected.

7.1 Proof of Consent

When you accept a legal text on the Service (for example, the refund acknowledgment before you pay for a plan, or the consent to sign documents electronically), we record the date and time, your IP address, your browser's user agent, and the version of the text you accepted.

We use this record only to document your consent and to defend against claims, including payment disputes. We don't use it for marketing or advertising.

We keep this record for five (5) years after our relationship with you ends, and then delete it.

To ask about this record, contact us at privacy@lixtara.com.

8. Data Security

We use reasonable administrative, technical, and organizational measures designed to protect personal information against loss, misuse, and unauthorized access, disclosure, alteration, and destruction. We rely on established service providers, and we apply access controls and other safeguards appropriate to the nature of the information.

However, no method of transmission over the Internet or method of electronic storage is completely secure. We cannot guarantee the absolute security of your information, and you provide it at your own risk. If you have reason to believe that your interaction with us is no longer secure, please contact us immediately.

9. Your Privacy Rights

Depending on where you live and subject to applicable law, you may have rights regarding your personal information, including the right to access the information we hold about you, to correct inaccurate information, to request deletion, to obtain a copy of certain information in a portable format, and to opt out of certain processing.

To exercise your rights, contact us at privacy@lixtara.com. We may need to verify your identity before fulfilling your request, including by asking you to confirm information associated with your account, in order to protect your information from unauthorized access.

9.1 California Residents

If you are a California resident, the California Consumer Privacy Act (CCPA), as amended by the California Privacy Rights Act (CPRA), may give you certain rights regarding your personal information, depending on whether that law applies to us. These may include the right to know what personal information we collect, use, and disclose; the right to request deletion of your personal information; the right to correct inaccurate personal information; the right to opt out of the sale or sharing of personal information; and the right not to be discriminated against for exercising your rights.

As stated above, Lixtara does not sell your personal information for money and does not currently share personal information for cross-context behavioral advertising. To exercise your California rights,

contact us at privacy@lixtara.com.

9.2 Florida Residents

If you are a Florida resident, the Florida Digital Bill of Rights may provide you with certain rights regarding your personal information, which may include rights to access, correct, delete, and obtain a copy of your personal information, and to opt out of certain processing. To exercise these rights, contact us at privacy@lixtara.com.

10. Children's Privacy

The Service is intended for adults who are at least 18 years old. It is not directed to children, and we do not knowingly collect personal information from children. If you believe that a child has provided us with personal information, please contact us at privacy@lixtara.com, and we will take appropriate steps to delete it.

11. International Users and Data Transfers

Lixtara is based in the United States, and we process and store information in the United States. If you access the Service from outside the United States, you understand that your information will be transferred to and processed in the United States, where data protection laws may differ from those in your jurisdiction.

If you are located in a jurisdiction governed by laws such as the EU General Data Protection Regulation (GDPR), please be aware that, by using the Service, you direct us to process your information in the United States as described in this Policy.

12. Do Not Track

Some browsers offer a "Do Not Track" signal. Because there is no consistent industry standard for how to respond to these signals, the Service does not currently respond to Do Not Track signals. We will continue to monitor developments in this area.

13. Third-Party Links and Services

The Service may contain links to third-party websites, products, or services that we do not own or control, and it relies on third-party providers as described in this Policy. We are not responsible for the privacy practices of these third parties. We encourage you to review the privacy policies of any third-party services you access.

14. Changes to This Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, technology, legal requirements, or other factors. When we make changes, we will revise the date associated with this Policy and, where appropriate, provide additional notice. Your continued use of the Service after an update becomes effective constitutes your acceptance of the revised Policy.

15. Contact Us and How to Exercise Your Rights

If you have questions about this Privacy Policy or our privacy practices, or if you wish to exercise your privacy rights, please contact us:

By email for privacy matters: privacy@lixtara.com

By email for general support: support@lixtara.com

By mail: Lixtara LLC, 181 Vera Ct, Miami, FL 33143, United States

Attention: privacy@lixtara.com

To submit a request to access, correct, delete, or otherwise exercise your rights, please email privacy@lixtara.com with details of your request. We may need to verify your identity before processing your request.